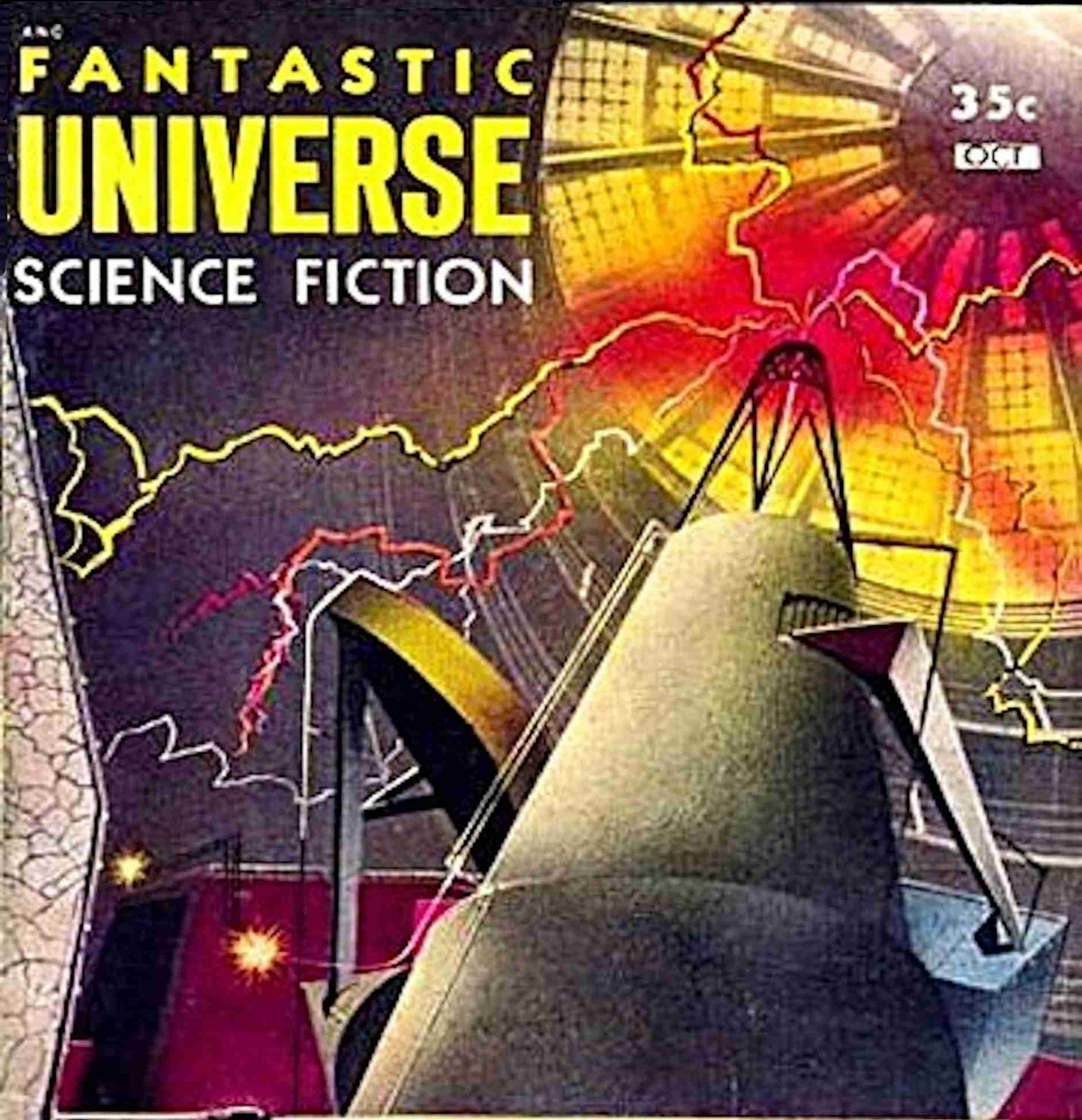


AND
**FANTASTIC
UNIVERSE**
SCIENCE FICTION

35c
OCT



ROBERT SHECKLEY • PHILIP K. DICK
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ALL STORIES IN THIS ISSUE BRAND NEW

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*** START OF THE PROJECT GUTENBERG EBOOK ONCE A FIRST
WIFE ***

Once a First Wife

By Norman Arkawy

**She writhed under the judges' merciless
scrutiny. The charge against her was surely
a most grievous one—marital fidelity!**

**[Transcriber's Note: This etext was produced from
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The world of 2136, when seen through the eyes of a woman unjustly accused and fighting to remain an individual in her own right can take on somber overtones of high tragedy. Norman Arkawy has a rare talent for looking ahead and interpreting the future in realistically compelling terms.

GENEVA, DEC. 11 (SP)—*The first contested suit for divorce in eighty-three years was brought to trial today before the Terran High Court in this city. Justices Schluss, Jones and Klyutch presided at the unprecedented proceeding in which Merl Wisson petitioned for a divorce from his first-wife, Sar.*

The petitioner's case, a charge of sexual incompetence, was presented today. Tomorrow, Mrs. Wisson's attorney will begin the unusual contesting action. The court's decision is expected tomorrow or the following day.

Since the middle of the twenty-first century, when the Uniform Divorce Code was adopted throughout the system, grounds for divorce have included only incompatibility, sexual incompetence, and sterility. The Wisson case, however, is the first in history in which one of the "stigma" charges has been used. In every previous divorce action, petition has been made on the grounds of incompatibility and has been filed mutually by both husband and first-wife.

When questioned by this reporter, Mr. Wisson said that he would have preferred to seek the divorce less sensationally, on the usual incompatibility charge, but that his first-wife has refused to agree to an uncontested action.

Mrs. Wisson made no comment.

Sar dropped the newstrip into the disposall. A sardonic smile curled her lip. "I'll comment," she muttered, "tomorrow—in court!"

Dag yawned and stretched luxuriously. She sat up on the couch and looked searchingly at her sister. "You must love him very much," she said.

"Love him?" Sar laughed, and said viciously, "I detest him!"

Dag reached into her pocket for her pack of Happies. She put a barkastem in her mouth and offered the pack to Sar. They nibbled in silence.

"I don't understand," Dag said, finally, shaking her head. "If you feel that way why don't you let him have the divorce? Why keep him if you hate him?"

Sar smiled indulgently at her sister. "I don't want to keep him. I want him to keep me!"

The blank look on Dag's face clearly indicated her bewilderment.

"I'm forty-one," Sar explained. "If I'm divorced now, what chance do you suppose I'll have to become a first-wife again? It's hard enough getting a man when you're young. And I have no intention of becoming a second-wife. The first-wife pension is too good to give up! In nine more years I'll be eligible for it. Then Merl can have his divorce and get himself another first-wife. But not until then!"

"What if the court grants the divorce?"

"How can they?" Sar demanded. "My competence can't be questioned, no matter how many bribed witnesses Merl may have. Anyone can look at the record and see. And the six sturdy children who bear my name are certainly evidence that I'm not sterile.

"No, Dag," she summed up, "I'm not going to lose my rating. I don't know which one of Merl's second-wives aspires to be Mrs. Wisson, but whoever she is, she's going to be disappointed unless she's willing to wait nine years. And by then," she added wryly, "she'll be too old to suit Merl. I'm afraid she'll have to be satisfied to remain a second-wife."

Sar laughed. "Once a second-wife, always a second-wife," she said. "Or, what's more to the point—once a first-wife...."

The courtroom was crowded the next morning when Sar Wisson's attorney rose to present his case. It was up to him to disprove the charge of sexual incompetence, a charge which his opponent had attempted to substantiate solely on the testimony of Sar's husband and several men who claimed to have had unsatisfactory love affairs with her. It was up to him to discredit the testimony of these men, and establish the fact of Sar's competence.

"Honorable members of the court," he began. "I shall prove beyond any doubt that the charge against my client, Mrs. Sar Wisson, has no basis in fact. Having established her competence, I shall request the court to deny the petition for divorce.

"If it please the court," he announced, "I should like to call Mrs. Sar Wisson to the stand."

When Sar had made herself comfortable in the seat opposite the judges' dais, her lawyer began the examination. "*Mrs.* Wisson," he said, emphasizing the title that only a first-wife is entitled to, "do you understand the charge made against you? Do you know what sexual incompetence is?"

"I do."

"To the best of your knowledge, are you incompetent?"

"I am not!"

"Object!" shouted Merl's attorney. "Her competence or incompetence is something which she is not in a position to judge. Naturally, she believes herself to be...."

Justice Klyutch, the presiding officer of the court, waved the attorney to silence. "Overruled," he said. "The woman has a right to speak in her own defense. However, the court will take note of the source of the testimony, counselor."

"Now, Mrs. Wisson," Sar's lawyer resumed, "did you hear the testimony of the witnesses called by the petitioner yesterday? I refer to the four men who said they had been your lovers."

"I heard what they said, and it was a pack of lies!"

"Please, Mrs. Wisson," the lawyer cautioned, "just answer the questions I ask you. Don't elaborate.

"Now then—did you ever have affairs with any of these men?"

"I did not!"

"Do you know them? Have you ever seen them before?"

"I know Jon Barra," Sar replied. "He's my husband's business partner. The other three I never saw before in my life."

There was a mild ripple of hushed comment among the spectators in the room. The bailiffs quickly restored order and the judge motioned the lawyer to continue.

"I should like to submit as evidence these certified photostats of the educational records of Sar Wisson, nee Malcom," the lawyer announced.

The papers were accepted by the clerk of the court and labeled as exhibits A, B, and C. Copies of the evidence were handed to the justices who studied them intently while waiting for Sar's attorney to continue.

"You will note," he said, "that Mrs. Wisson's grades in sexual education are all excellent. Class nine," he read, "Fundamental Biology—grade one. Class eleven, Basic Sex—grade one. Class twelve, Adolescent Sexology—grade two. Class thirteen, History of Romance—grade one. Class fourteen, Sexual Techniques...."

Justice Klyutch interrupted him by pressing the 'hold' button causing the amber light on the front of the rostrum to flash warningly. "There's no need to list them all, counselor," he said. "The court recognizes the evidence submitted. We can read the reports."

"Yes, Your Honor. But I should like to point out especially that Mrs. Wisson was the top honor student in her class in Advanced Sexual Techniques in class twenty-one," the lawyer pursued. "As a result, she received the Aphrodite Award at the University commencement exercises in twenty-one-sixteen. How can such a woman be called sexually incompetent? Obviously, she is not only competent—she's expert!"

Merl's lawyer rose to his feet. "Objection," he said calmly, matter-of-factly. "We do not contest the lady's aptitude twenty years ago, when she last

attended school. We do question her ability now—today, this year. It is regrettable that time and age can cause even the best of us to lose his or her talent, but such is the way of nature. And it is our contention that, regardless of her superior record in school, Sar Wisson is sexually incompetent *today*."

Sar leaped to her feet. "That's not true!" she shouted angrily. "It's not true!" Tears welled in her eyes and there was a catch in her voice as she said defiantly, "I'm only forty-one. I'm not old!"

The courtroom hummed excitedly over the dramatic outburst.

Sar felt as if a million eyes were staring at her, a million tongues talking about her. She was conscious of an awkward stiffness in every part of her body, which was suddenly a strange, uncomfortable garment she wished she could throw off.

She sat down again, folding her hands in her lap, nervously clasping and unclasping her fingers. Bowing her head, she fixed her gaze on the floor. Shame was an emotion she rarely felt. She felt it now, covering her, pervading the air around her. It was stifling.

The buzzing in the courtroom grew louder, more excited.

The full meaning of the accusation suddenly opened up to her and she realized how serious it was. Yesterday she had laughed at the absurdity of the charge. Now she was infuriated by its viciousness. They actually meant to ruin her!

Stripped of her first-wife respectability, at forty-one she might not even have the opportunity of becoming a second-wife. And, although she would never be satisfied as a second-wife, at least she would still live comfortably and receive a modest pension when she retired. But who would want an aging, *incompetent* woman, even as a second-wife?

There would be only one thing left for her to do. She would be forced to enlist in one of the 'publics'! That, or neutralization. And she could not submit to neutralization. Life in the 'publics' was not pleasant, but neutralization was no life at all.

Living in the 'publics' would be hell-on-earth. Her rations would be reduced to class C, and she would be assigned living space in a twelve-quarter dorm.

She'd be given a four hour job and be required to put in four hours more in the service. But she would still be a woman. Unneutralized, she would live.

Live? Yes, she would live. She would live to cater to the men who utilized the Government's public sexological stations. So many men—coarse, rough, unmateable men! The thought sickened her.

The warning light on the judges' rostrum flashed on, and the noise in the room gradually subsided. Order was restored. Justice Klyutch cautioned Sar not to disturb the decorum of the court again.

After Sar's lawyer had made a formal apology for his client's unusual conduct, his opponent pursued the argument he had begun before the outburst.

"We maintain that Sar Wisson is incompetent," he repeated. "We have shown," he continued, "that not only her husband, but also four other men have recently been dissatisfied with her. We have five witnesses attesting to her incompetence *now*. We are not concerned with her ability in the past.

"We have five witnesses," he emphasized, "who state, from personal experience, that she is incompetent."

He smiled triumphantly. "Does the respondent have *one* who will dispute our claim?"

Sar stared at him in awe, as one would stare at an unbelievable monstrosity, born in a fertilely imaginative mind and portrayed in the TDs by an actor suitably deformed by the genius of make-up. But this was no TD image—this monster was real and he was standing only a few feet away, leering at her, challenging her, hurting her, condemning her.

They knew that she could bring forth no witnesses in her defense. That was what made the challenge so cruel. They knew that she had had no lovers since before her first child was born, nineteen years ago. She had been a virtuous wife, a faithful wife. And now they were turning her very virtue against her!

"Do you have such a witness?" Justice Klyutch asked her attorney.

"I ask the court's permission to confer privately with my client," the lawyer replied, rising hastily from his seat.

"Granted."

"No," Sar said abruptly. Her lawyer had hardly started across the room to the witness seat when her voice stopped him. "No," Sar repeated, "we have no witness."

"Your Honors," her lawyer said hurriedly, "I request that my client's remark be stricken from the record. It was not made in reply to a question, nor was it on advice of counsel." To Sar he said, "Please, Mrs. Wisson, do not volunteer information before you consult me."

"Why not?" Sar asked sadly. "There is no one. What good would it do to consult you?"

"Please, Mrs. Wisson," the lawyer insisted. "Perhaps there is someone whom you've forgotten. Perhaps you'll remember if you discuss it with me. Perhaps...."

"No," Sar pronounced, finally. "There has been no one. I won't invent a mythical lover. We have no witness."

The lawyer returned to his seat dejectedly. Sar had ruined whatever chance he might have had to bring in a false witness to dispute those presented by her husband.

If the court accepted the testimony of the four supposed lovers, the case was lost. Even without their testimony, it was a toss-up between Sar's word and her husband's. After all, records of an ability possessed twenty years ago really proved nothing about the present. So what if she had been an exceptionally apt student in school? After twenty years, she might be different—altogether different. She might very well be incompetent.

Sar, too, knew that she had spoiled her own opportunity to counteract the fraudulent testimony of her husband's friends. Yet, although she was afraid of the consequences of losing the case, she could not bring herself to lie about her private life. She could not claim lovers she had not had. It was ridiculous, she knew, in this day and age, but she was actually proud of her fidelity.

She watched the three judges lean together in conference. The million eyes still peered at her. They pawed at her body, probed at her thoughts. She fidgeted under their merciless scrutiny as the minutes crept by and the judges' conference continued.

Stop! she wanted to shout. *Stop this torture! Say something—anything! But don't make me sit here like a freak on exhibition!*

Justices Jones and Schluss straightened in their seats on either side of the presiding judge. Chief justice Klyutch cleared his throat importantly.

"Mrs. Wisson," he said, "the court finds it impossible to properly evaluate all the evidence presented in this case. It is our judgment that the only way to determine your competence is to have an impartial reliable person test you. Do you agree to submit to such a test?"

She nodded her head quickly. Of course she would agree. She'd agree to anything if they'd only let her get off the stand—off display.

"My colleagues and I want to select for this test a man who is impartial and whose judgment is valued by this court," Klyutch continued, strangely nervous. He colored slightly before adding, "I have been nominated.

"Do you have any objections?" he asked her.

Sar smiled at him. She began to relax in the presence of his archaic modesty—the nervous shyness, the faint blush. Momentarily, she pitied him in his embarrassment and forgot, momentarily, to pity herself.

She smiled at him. There was certainly no reason to object to him any more than to any other man. Less, perhaps. He had a gentleness about him that Sar decided was rather attractive. But she appreciated the humor in being tested for competence by a man whose own competence might be questioned.

Justice Klyutch was a middle-aged widower whose first-wife had died three years ago—from boredom, some people said. He belonged to the small sect who called themselves monogamists and had no second-wives, and, since his wife's death, he had been living a monastic life.

But, although he may not have been the best qualified man for the job, Sar was quite willing to have him conduct the test. In fact, she reflected, he would probably be easy to convince....

When the court convened the next morning, every seat in the spectators' section was filled. The room was hushed in expectancy as the judges filed in and took their seats on the dais.

Justice Klyutch called the court to order.

Every ear in the room strained to hear his decision.

"At the close of yesterday's session," he began, "it was agreed that the court conduct a test to determine the competence of Sar Wisson, accused of incompetence by her husband. The test has been completed.

"It is the opinion of the court that the charge against Mrs. Wisson has no basis in fact. The request for divorce on the grounds of sexual incompetence is, therefore, denied."

An excited babbling swept across the room. It quickly subsided when the warning light indicated that the judge had not finished his pronouncement.

"However," Klyutch continued, "Mrs. Wisson has informed the court that she no longer objects to the divorce and that she is willing to agree to the action on the usual grounds of incompatibility."

Dag was amazed at the sudden turn of events. She couldn't believe what she saw on the newstrip, screaming in maximum bold type.

WISSON DIVORCED!

And, in letters only slightly less emphatic, FIRST-WIFE WITHDRAWS OBJECTION.

Dag stared at the amazing heads, then began rapidly reading the story aloud to herself.

"Merl Wisson received a divorce from his first-wife, Sar, ten minutes after the court had refused the divorce on the charge of incompetence. In a sudden reversal of position, Sar Wisson agreed to the separation for reasons of incompatibility immediately after she had won her unprecedented contesting action. For the record, Justice Klyutch...."

The newstrip fluttered to the floor as Dag's lifeless toss missed the disposal opening. She sat dazedly, watching the newsmachine disgorge strip after strip onto the growing pile of paper at her feet. Too stunned for the moment to get up and turn the machine off, she was vaguely thankful that she had set it only for local news. If the whole edition was allowed to accumulate on the floor, she'd have to dig herself out!

The machine clicked off automatically after a last strip floated down to the pile on the floor.

Aroused from her reverie as the newsmachine snapped itself off, Dag stood up. She searched her pockets for a barkastem, found one in a crumpled pack and slid it into her mouth. She nibbled thoughtfully.

Ignoring the mess of strips on the floor, she headed for the door, determined to get to the bottom of the mystery of Sar's change of heart.

Half an hour later, she was pressing the call button of Sar's apartment.

The door was opened by a tall, distinguished-looking man. Dag brushed by him abruptly and walked into the room. She saw her sister at the bar, mixing a couple of drinks.

"Sar!" she exclaimed. "What happened? I thought you were going to fight it."

Sar looked up and smiled a greeting. "Hello, Dag," she said.

"What happened?" Dag repeated anxiously.

"I changed my mind," Sar explained. "Woman's prerogative."

"But what about the pension, and the comforts and security?"

Sar laughed softly. "It turns out that that has nothing to do with divorcing Merl."

"But you said...."

"I said, 'once a first-wife, always a first-wife'," Sar reminded her.

Sar turned to the distinguished-looking man, who had been watching silently, listening to the exchange between the two women, a faint smile on his lips. "Ken, this is my sister, Dag.

"Dag," she said, completing the introduction, "I'd like you to meet Justice Klyutch."

*** END OF THE PROJECT GUTENBERG EBOOK ONCE A FIRST
WIFE ***

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